

JOHN DOE
1000 Sample Street, Nashville, TN 37203

Date: _____

Office of the District Attorney General, the judicial district named on the sender's own judgment (synthetic sample district)
[DISTRICT ATTORNEY GENERAL'S OFFICE MAILING ADDRESS – SENDER CONFIRMS WITH THAT OFFICE]

RE: Request under T.C.A. § 40-32-108(e) that your office prepare a petition for expunction under T.C.A. § 40-32-107(e), following completion of a certified recovery court programme

To the Office of the District Attorney General for the judicial district named on the sender's own judgment (synthetic sample district):

My name is JOHN DOE. I am writing to ask your office to prepare a petition for expunction and a proposed order under T.C.A. § 40-32-108(e), so that I can then file them with the clerk of the convicting court under T.C.A. § 40-32-108(a). I am not asking your office to reach any conclusion for me. I am asking it to prepare the instruments the statute assigns to it, and I set out below the facts I rely on so that your office can make its own determination.

The conviction is in the court named on the sender's own judgment (synthetic sample court), in the judicial district named on the sender's own judgment (synthetic sample district). The case number as I read it from my own record is the case number shown on the sender's own judgment (synthetic sample answer). The offence and the exact statutory section as they appear on the judgment are: the offence and section exactly as they appear on the judgment (synthetic sample answer). My state control number is [STATE CONTROL NUMBER – SENDER READS IT FROM THEIR OWN CRIMINAL HISTORY AND ENTERS IT HERE BEFORE SENDING].

I rely on T.C.A. § 40-32-107(e). I am not asking for a conviction under T.C.A. § 55-10-401 to be expunged, and I understand that subsection (e)(3) forbids expunction of any offence that involves a motor vehicle and the use of alcohol or a controlled substance. What I ask for is expunction of a different, otherwise-eligible offence. My own answers on each condition are: on whether the offence I ask to have expunged involves a motor vehicle and the use of alcohol or a controlled substance – the offence involves no motor vehicle and no use of alcohol or a controlled substance (synthetic sample answer); on my convictions under that section and their dates – I have one such conviction, on the date shown on that judgment (synthetic sample answer); on the date of the offence I ask to have expunged – the offence date shown on the judgment (synthetic sample answer); on whether it occurred at least ten years after that conviction – more than ten years separate the two dates (synthetic sample answer); on my completion of a certified recovery court programme established under title 16 – I completed a certified recovery court programme (synthetic sample answer); on whether every fine, restitution amount, court cost and other assessment for the offence being expunged is paid and every term of imprisonment, probation and condition of release completed – every amount is paid and every term and condition completed (synthetic sample answer); and on whether I have previously been granted expunction under subsection (a), (b), (c) or (e) – I have not previously been granted expunction under any of those subsections (synthetic sample answer).

I record what I understand about how the court will approach this. Subsection (e) is named in neither the rebuttable presumption nor the violence-weighting direction that

applies to petitioners under subsection (d), so I understand the court weighs my interest against the best interests of justice and public safety without a presumption either way. I make no argument here about how that weighing should come out.

I understand that once your office prepares the petition and the proposed order, I file them with the clerk of the convicting court and pay the appropriate clerk's fee, and that the clerk then serves the petition on your office. I understand that this letter is not the petition, that it starts no statutory clock, and that nothing in it binds your office to my reading of my own record. Please send your written response to my mailing address shown at the top of this letter.

ENCLOSURES

- [COPY OF THE JUDGMENT FOR THE OFFENCE THE SENDER ASKS TO HAVE EXPUNGED, SHOWING ITS EXACT STATUTORY SECTION AND THE OFFENCE DATE – SENDER ENCLOSES A COPY ONLY]
- [COPY OF THE JUDGMENT FOR THE EARLIER CONVICTION, SHOWING ITS DATE – SENDER ENCLOSES A COPY ONLY]
- [WHATEVER DOCUMENT THE RECOVERY COURT PROGRAMME GAVE THE SENDER ON COMPLETION – SENDER ENCLOSES A COPY ONLY; THE SOURCE DOES NOT ESTABLISH WHICH INSTRUMENT THIS IS]

Sincerely,

JOHN DOE
1000 Sample Street, Nashville, TN 37203

Date signed: _____

[NOTE: The sender signs and dates this letter personally before sending.]

Prepared by the sender using LegalEase RCAP. This is not an official court form.